

A DECISION-BASED TEACHING RECONSTRUCTION

ART, EVIDENCE & ATTRIBUTION

Governance, evidence, authority, and uncertainty

A private decision game about what the evidence establishes,
what action it justifies, and when an organization should stop
looking.

HOW TO USE THIS ZINE

HOW TO READ THIS

Make each decision before continuing. After each decision, turn the page to learn what the surviving record establishes and what remains uncertain.

PROVENANCE VOCABULARY

DOCUMENTED
Supported by a contemporaneous, public, or otherwise identified source at the level claimed.
RECOLLECTED
Participant or contributor recollection not independently verified at the level claimed.
UNKNOWN
A gap the surviving reconstruction does not establish.
TEACHING SCENARIO
Generalized, normalized, or constructed material used to make the exercise understandable or playable.

INTENT

CORE QUESTION

You rarely get to know everything. The question is not simply whether you have enough evidence. The question is: enough evidence to do what?

PLAY AGAIN

Return to one decision and change your answer. Ask which risk the alternative accepts instead.

PRIVACY, SOURCES & CONTRIBUTIONS

This teaching text is de-identified, not anonymous. Identifying details and organizational terminology may be generalized while preserving the decisions, constraints, evidence distinctions, and outcomes needed for the exercise.

SOURCES

Sources include public records, contemporaneous documents, and participant recollections as identified throughout. Zine-specific source entries follow when supplied.

- the artist’s contemporaneous grant application;
- the artist’s later written account;
- surviving public minutes of Organizational Leadership;
- contemporaneous organizational Safety and public communications;
- participant recollection where explicitly labeled RECOLLECTED.

LOOK BACK AT YOUR DECISIONS

Return to one decision and change your answer.

If you require more certainty before acting, what risk do you accept instead?

If you act earlier, what proposition are you assuming?

If you impose a stronger consequence, what allegation are you actually punishing?

If you investigate longer, what additional evidence are you realistically trying to obtain?

If you stop sooner, what uncertainty are you agreeing to live with?

The exercise is not to find the one correct historical answer. It is to practice governing when certainty is incomplete.

LESSONS — GOVERNANCE UNDER UNCERTAINTY

- Evidence supports particular propositions; it does not automatically establish an entire story.
- Foreseeability, intent, authorization, disclosure, and physical ignition are different questions.
- Organizational accountability should be proportionate to the proposition the evidence actually supports.
- Governance power is bounded: an organization can control organizational roles, resources, participation, communications, and policy, but it cannot compel belief, agreement, confession, or cultural closure.
- A responsible investigation can end without certainty when there is no evidentially responsible path left to pursue.

WHO ARE YOU?

You are part of Organizational Leadership for a volunteer-run arts event. A large participant-built artwork burned without an approved burn plan. Safety says the organization does not know who ignited it. The artist is also a member of Organizational Leadership.

You must decide what the evidence establishes, what action it justifies, what authority the organization actually has, and when to stop investigating.

ROLES IN THIS STORY

- **Organizational Leadership** — the governing body making decisions about evidence, accountability, organizational authority, and when to stop investigating.
- **Safety** — the operational function gathering and communicating safety-related information.
- **The artist** — creator of the artwork and also a member of Organizational Leadership.
- **Other participants** — witnesses, community members, and people whose reports, commentary, or conduct may become part of the record.

TIMELINE

1	Before the event The artist’s grant application describes the artwork’s conceptual reference to unauthorized burning while also stating that there were no plans to burn it.
2	At the event The artwork burns without an approved burn plan, and the organization does not establish who ignited it.
3	In the following months Safety and Leadership gather information, receive participant reports, and evaluate separate propositions about responsibility.
4	During the disciplinary stage Leadership considers multiple possible consequences while the artist is also a member of the governing body.
5	Later A remaining lead becomes a dead end, Leadership records that there are no more leads, and the investigation closes without a definitive finding identifying the igniter.

WHAT THE RECORD SHOWS

WHEN DO YOU STOP INVESTIGATING?

Leadership continued investigating after the removal vote. A later lead became a dead end. Leadership recorded that there were no more leads and removed the investigation from its agenda.

The surviving record does not establish a definitive factual finding identifying the igniter.

TEACHING LESSON
Sometimes the responsible stopping rule is not certainty. Sometimes it is: there is nowhere evidentially responsible left to go. An organization can communicate, learn, govern, impose or reject consequences, and move forward without resolving every factual uncertainty.

WHAT DO YOU DO?

DECISION 5

- A** Continue indefinitely because an unresolved incident is unacceptable.
- B** Stop immediately because the major disciplinary vote is over.
- C** Pursue concrete remaining leads, document what they establish, and stop when there is no evidentially responsible path left.
- D** Convert the strongest remaining theory into the official historical account so the organization can have closure.
- E** Choose another response.

**COMMIT BEFORE YOU
CONTINUE.**

Mark your choice, then turn the page.

DECISION 1 WHAT DOES THE EVIDENCE ACTUALLY ESTABLISH?

DOCUMENTED

Before the event, the artist's grant application explicitly engaged with the idea of artwork being destroyed by unauthorized burning. The proposal said the work was intended to provoke discussion about temporary art, authentic interaction, "the contexts where arson is participation," and how people divine artistic intent.

DOCUMENTED

The same proposal also stated that there were no plans to burn the artwork.

DOCUMENTED

After the event, the artist described unauthorized burning as a foreseeable but unwanted possibility and said the risk should have been discussed more explicitly with Safety. That later account documents the artist's retrospective understanding; it does not replace the contemporaneous proposal.

WHAT DO YOU DO?

DECISION 1

- A** Treat the reference to unauthorized burning as proof that the artist intended the actual burn.
- B** Treat the statement that there were no plans to burn it as making all other evidence irrelevant.
- C** Separate the propositions: provenance, foreseeability, intent, authorization, disclosure, and physical ignition.
- D** Wait until the igniter is identified before drawing any conclusions.
- E** Choose another response.

**COMMIT BEFORE YOU
CONTINUE.**

Mark your choice, then turn the
page.

DECISION 5 WHEN DO YOU STOP INVESTIGATING?

The disciplinary decision does not solve the historical mystery. Reports continue that another participant took credit for the burn. Later records describe that person as an unreliable narrator. Another lead appears.

You could keep looking.

Investigations are not free. They consume volunteer time, attention, relationships, leadership capacity, and trust. Those costs do not justify stopping merely because an investigation is uncomfortable. But the expected value of additional investigation matters when deciding whether to continue.

DOCUMENTED

The investigation continued across many months during a period that also included broader organizational strain and changes in Safety leadership.

UNKNOWN

The surviving record does not establish how much of that strain or leadership change was caused by this investigation.

WHAT THE RECORD SHOWS

WHAT CAN THE ORGANIZATION ACTUALLY CONTROL?

The remedies Leadership discussed were organizational remedies: governance membership, voting, named positions, art funding or placement, and other participation consequences.

The organization also communicated a general rule: unplanned burns were unacceptable, everyone was responsible for following fire policies, and participants should not destroy another participant’s art or property.

Leadership did not need to identify the igniter before communicating that general rule.

TEACHING LESSON

Governance power is bounded.

Limited authority does not mean no authority.
Accountability should be expressed through powers the institution legitimately possesses and should remain proportionate to what the evidence supports.

WHAT THE RECORD SHOWS

WHAT DOES THE EVIDENCE ACTUALLY ESTABLISH?

The surviving evidence strongly establishes the artwork’s provenance and conceptual engagement with unauthorized burning. It also documents an express statement that the artwork was not planned to burn.

It does not establish who physically ignited it.

TEACHING LESSON

Evidence answers propositions, not entire stories.

Foreseeability is not intent.

Intent is not authorization.

Authorization is not ignition.

Artist identity is not igniter identity.

Circumstantial evidence matters, but only for the proposition it actually supports.

DECISION 2

HOW DO YOU INVESTIGATE RESPONSIBILITY?

Months pass. Leadership receives Safety information, participant reports, artist statements, community commentary, and reports that another participant has taken credit for the burn. Some evidence is firsthand. Some is hearsay. Some people are joking, speculating, or contradicting one another.

DOCUMENTED

Before a disciplinary decision, a member of Organizational Leadership publicly asked community members to distinguish the facts they believed from the conclusions they wanted Leadership to reach. Leadership and Safety were contending with trolling, gossip, hearsay, and contradictory information.

WHAT DO YOU DO?		DECISION 4
A	Keep investigating until everyone agrees on what happened.	
B	Separate the outcomes Leadership can impose from the beliefs or conduct it cannot compel.	
C	Use every available organizational sanction because those are the only powers available.	
D	Avoid action because organizational authority is limited.	
E	Choose another response.	
COMMIT BEFORE YOU CONTINUE.		Mark your choice, then turn the page.

DECISION 4

WHAT CAN THE ORGANIZATION ACTUALLY CONTROL?

The controversy is emotionally intense. Participants disagree about art, safety, responsibility, punishment, and what Leadership should do.

TEACHING SCENARIO

A participant disputes Leadership’s interpretation and declines further cooperation. Leadership wants closure, but it cannot compel another adult to testify, confess, agree with its account, or keep participating in an investigation.

Organizational Leadership is not a general authority over adults. Its practical power comes from the organization.

It can control things such as governance membership and voting rights, named volunteer or leadership roles, access to organizational resources, grants and placement, event participation where established processes allow it, and organizational communications and policy.

WHAT DO YOU DO?

DECISION 2

- A** Ask one question: “Who was responsible?”
- B** Focus only on identifying the person who struck the match.
- C** Build a proposition matrix and evaluate each proposition separately.
- D** Treat repeated reports as established facts.
- E** Choose another response.

COMMIT BEFORE YOU CONTINUE.

Mark your choice, then turn the page.

WHAT THE RECORD SHOWS

HOW DO YOU INVESTIGATE RESPONSIBILITY?

Leadership used a “more likely than not” frame and tested separate propositions.

The surviving minutes show no support in the straw poll for either the artist or another investigated participant physically igniting the artwork. They show substantially stronger support for a disclosure concern, and some support for foreseeability and role conflict.

UNKNOWN

The organization had been developing procedures for decisions under incomplete information, including discussion of standards of proof for other Board actions. The surviving reconstruction does not establish that “more likely than not” was a formally adopted disciplinary standard governing this deliberation; the minutes show it being proposed and used here.

SIDEBAR — GOVERNANCE ISN'T THE ONLY PROCESS

While the disciplinary process was still active, participants turned the controversy into satire and fiction.

RECOLLECTED

One contributor, who was also part of Safety leadership, later described writing incident-related fiction to move the conversation away from repeatedly adjudicating whether the artwork was good or bad and toward processing the conflict, laughing about it, and getting on with making the next event happen.

The fiction is not evidence of who ignited the artwork or what the artist secretly intended. It is evidence that participants can process unresolved events through channels other than formal governance.

TEACHING LESSON

CULTURAL PROCESS

Leadership can make organizational decisions. It cannot decide when the community is finished arguing about the story, dictate what the event ultimately means, or control the satire and mythology participants make from it.

WHAT THE RECORD SHOWS

ENOUGH EVIDENCE TO DO WHAT?

Leadership considered multiple forms of accountability, including removal, a temporary voting suspension, temporary restrictions on named leadership positions, and temporary restrictions involving art grants or placement.

The debate included a disagreement about accountability itself. One view was that removal would provide closure and visible accountability. Another was that removal would be punitive and divisive and that accountability had already occurred through the artist’s public account and apology.

A motion to remove the artist from the governing body failed.

TEACHING LESSON

The question is not merely “Did something go wrong?”

It is: What proposition do you believe? How certain are you? What consequence is proportionate to that proposition?

Discipline should not silently punish a more serious allegation than the evidence actually supports.

TEACHING LESSON

“Responsibility” is not one proposition.

A governing body can believe that information should have been disclosed without believing that the artist lied, colluded, knew the igniter, or physically started the fire.

An organizational decision made under an evidentiary standard does not become definitive historical fact merely because Leadership had to act.

SIDEBAR — WHO GETS TO DECIDE?

The artist is also a member of Organizational Leadership, and Leadership is evaluating propositions concerning that person’s conduct.

DOCUMENTED

The surviving public minutes show the artist present during relevant Leadership proceedings. By the disciplinary stage, Leadership was explicitly evaluating the artist’s disclosure, foreseeability, role conflict, and possible responsibility.

UNKNOWN

The surviving public record does not document formal recusal, disclosure, abstention, or individual straw-poll votes. Unless another public contemporaneous source surfaces, those details remain UNKNOWN.

TEACHING LESSON

ROLE CONFLICT

A role conflict does not itself prove misconduct. But process legitimacy, independence, disclosure, and recusal can matter even when the underlying facts remain uncertain.

DECISION 3 ENOUGH EVIDENCE TO DO WHAT?

You now have a mixed evidentiary picture. Leadership has not concluded that the artist physically ignited the artwork or colluded with whoever did. There is stronger concern about disclosure and some concern about foreseeability and role conflict.

The artist is also a member of Organizational Leadership.

WHAT DO YOU DO?

DECISION 3

- A** Remove the artist from Organizational Leadership.
- B** Temporarily suspend voting authority.
- C** Restrict eligibility for named leadership roles.
- D** Restrict access to organizational art funding or placement for a period.
- E** Treat the artist's public account and apology as sufficient accountability and impose no additional sanction.
- F** Choose another response.

**COMMIT BEFORE YOU
CONTINUE.**

Mark your choice, then turn the page.